

expended by all Class Counsel, yielding a base lodestar of \$495,005.00. The declaration justifies applying a risk multiplier of 5.24 to this base lodestar, resulting in an enhanced lodestar of \$2,593,826.20—closely approximating the requested fee award. This multiplier accounts for the contingent nature of the representation, the risk of non-recovery, the complexity of the wage-and-hour claims, the preclusion of other employment, and the substantial results achieved for the Class and the State of California.

Litigation costs of \$26,131.10 are reasonable and are approved. Settlement administration costs of \$27,500.00 are reasonable and are approved.

The award of \$12,500.00 each to Plaintiffs Austin Cupit and Andrew Caro as enhancement and General Release Payments for plaintiffs is reviewed now, under the criteria for evaluation of representative payment requests discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807. Plaintiff Austin Cupit attests that he spent at least 10 hours on the case and understood the risks of and strategies involved in this litigation.

Considering all of the factors, particularly the size of the settlement, the full requested payment is approved.

Ruling

1. The Court finds that the settlement is fair, reasonable, and adequate.
2. The motion is **granted**.
3. Counsel are directed to prepare an order reflecting this tentative ruling and the other findings in the previously submitted proposed order, attaching a copy of this ruling.
4. The judgment should identify the individual class member who is excluded, so that if they ever bring a claim, it can easily be determined that they are not bound by the settlement. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented.
5. Plaintiffs' counsel is ordered to schedule a compliance hearing with the clerk of the court no later than one year from the date of this hearing and is ordered to submit a compliance statement at least ten (10) court days before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.
6. No appearance is required at the hearing on August 5, 2026.

17. 9:00 AM CASE NUMBER: MSC21-01963
CASE NAME: KNIGHT VS HONDA
FILED BY DEFENDANT AMERICAN HONDA MOTOR CO., INC.
FILED BY:
TENTATIVE RULING:

Before the Court is a motion by defendant American Honda Motor Co., Inc. for summary judgment, or in the alternative, summary adjudication. For the reasons set forth, the motion in its entirety is **denied**.

Background

Plaintiff alleges she was injured by a 2017 Honda CRV when she was trying to cross Kirker Pass. (Compl. ¶ 11.) On September 27, 2021, she filed her complaint initiating this action. The complaint includes causes of action for strict products liability, negligent failure to warn, negligent design and manufacture, negligence (post-sale), and negligence. A jury trial is scheduled for September 8, 2026, a date set that was set on January 15, 2026 at a case management/trial setting conference after the parties reported that mediation had been unsuccessful in resolving the case.

American Honda Motor Co., Inc. was added as defendant Doe 1 by a stipulation filed on April 26, 2022. Other Honda corporate entities named in the complaint were subsequently dismissed without prejudice on May 20, 2022. American Honda moves for summary judgment. Plaintiff opposes the motion on procedural grounds because the motion was filed and served less than 81 days prior to the scheduled hearing.

Legal Standards at Issue for Ruling on the Motion

Effective January 1, 2025, the summary judgment statute, Code of Civil Procedure section 437c, was amended in several respects, including the time required for notice of the motion. Code of Civil Procedure section 437c(a) in effect since 2025 provides: "Notice of the motion and supporting papers shall be served on all other parties to the action at least 81 days before the time appointed for hearing. If the notice is served by mail, the required 81-day period of notice shall be increased by 5 days if the place of address is within the State of California, 10 days if the place of address is outside the State of California but within the United States, and 20 days if the place of address is outside the United States. If the notice is served by facsimile transmission, express mail, or another method of delivery providing for overnight delivery, the required 81-day period of notice shall be increased by two court days. (Code Civ. Proc. § 437c(a)(2) [emphasis added].) The statute also imposes a requirement that the motion "shall be heard no later than 30 days before the date of trial, unless the court for good cause orders otherwise." (Code Civ. Proc. § 437c(a)(3).)

Analysis

On May 19, 2026, American Honda requested a reservation for a hearing on a motion for summary judgment. That day, the Court reserved a hearing for August 5, 2026, which was the latest law and motion calendar date for Department 16 that was at least 30 days prior to the trial date of September 8, 2026. American Honda filed its motion for summary judgment and served its motion papers on that date by electronic mail and by personal delivery. (POS filed 6/10/2026.)

On June 1, 2026, American Honda filed an *ex parte* application to continue the trial date or alternatively, specially setting the hearing on the motion for summary judgment within the 30-day period prior to the scheduled trial. Plaintiff opposed it, and the Court denied the *ex parte* application. Among other things, the Court noted that the trial date was set in January 2026, months before the summary judgment motion had to be filed in order to be heard more than 30 days before trial, and that the date was selected in light of the five-year deadline for commencing trial. (Min. Order filed 6/3/2026.) The Court also found that American Honda had not demonstrated it had been diligent in filing the summary judgment motion or an excuse for not having filed the motion until May 19, 2026. (Min. Order filed 6/3/2026.) The Court of Appeal **denied** a petition for writ of mandate filed by American Honda, challenging the ruling on the *ex parte* application. (Order from 1st DCA filed

6/25/2026.)

A. There Is No Dispute that Defendant Failed to Provide the 81-Day Statutory Notice of the Motion

The hearing date of August 5, 2026 is 78 days from May 19, 2026. Even with personal service, Plaintiff was not given the 81-day notice and service of the motion and supporting papers mandated by Code of Civil Procedure section 437c(a). Counsel for Plaintiff has declared that at no time did Plaintiff consent to shortened notice on the motion. (McDevitt Decl. ¶ 4.)

Courts addressing the version of the summary judgment statute in effect through 2024 have concluded based on the language of the statute and for policy reasons that the minimum statutory notice period provided in Code of Civil Procedure section 437c, plus additional notice depending on the manner of service of the notice of the motion, cannot be waived or reduced by the Court. (*Cuff v. Grossmont Union High School Dist.* (2013) 221 Cal.App.4th 582, 595-596 [statutory language as to minimum notice for summary judgment motions is mandatory, not directive]; *Urshan v. Musicians' Credit Union* (2004) 120 Cal.App.4th 758, 764, 768 [court has no authority to shorten the notice period for a motion for summary judgment as the statutory notice period is mandatory]; *McMahon v. Superior Court* (2003) 106 Cal.App.4th 112, 115 [stating "The subdivision does not contain any language authorizing courts to shorten the 75-day notice period."].)

The opposing party does not have to show prejudice for the Court to find the notice defective; the notice is invalid unless the opposing party expressly consents to a shorter notice period. (*Robinson v. Woods* (2008) 168 Cal.App.4th 1258, 1267-1268.) The inadequacy of the notice and service cannot be cured by continuing the hearing for the additional number of days that would total the full statutory notice period. (*Id.*) While there can be some question of waiver of the required statutory notice period if a party files a substantive opposition to the motion despite the inadequate notice, Plaintiff did not file a substantive opposition in this case. (*Compare to Carlton v. Quint* (2000) 77 Cal.App.4th 690, 697.)

B. Defendant's Contentions in Its Reply Brief

American Honda argues that the Court should disregard the line of authority cited above because the failure to provide the statutorily mandated notice period for a summary judgment is overridden by Code of Civil Procedure section 475. Defendant contends that Code of Civil Procedure section 475 mandates that the Court disregard procedural errors, including the failure to provide adequate notice of a summary judgment hearing, unless the opposing party demonstrates prejudice. Defendant also cites Article VI, section 13 of the California Constitution as further support for this proposition, as well as three summary judgment cases in which American Honda suggests the moving party did not comply with the notice requirements of Code of Civil Procedure section 437c, but the opposing party did not demonstrate any prejudice from the deficient notice.

Code of Civil Procedure section 475 states: "The court must, in every stage of an action, disregard any error, improper ruling, instruction, or defect, in the pleadings or proceedings which, in the opinion of said court, does not affect the substantial rights of the parties. No judgment, decision, or decree shall be reversed or affected by reason of any error, ruling, instruction, or defect, unless it shall appear from the record that such error, ruling, instruction, or defect was prejudicial, and also that by reason of such error, ruling, instruction, or defect, the said party complaining or appealing sustained and

suffered substantial injury, and that a different result would have been probable if such error, ruling, instruction, or defect had not occurred or existed. There shall be no presumption that error is prejudicial, or that injury was done if error is shown." (Emphasis added.) Code of Civil Procedure section 475 appears to be a statutory formulation of the harmless error doctrine.

Article VI, section 13 of the California Constitution similarly provides, "No judgment shall be set aside, or new trial granted, in any cause, on the ground of misdirection of the jury, or of the improper admission or rejection of evidence, or for any error as to any matter of pleading, or for any error as to any matter of procedure, unless, after an examination of the entire cause, including the evidence, the court shall be of the opinion that the error complained of has resulted in a miscarriage of justice." This provision of the California Constitution essentially states the "harmless error" doctrine.

In the opinion of the Court, informed by the case law summarized above, the failure to provide the full 81-day statutory notice period for a motion for summary judgment affects the substantial rights of Plaintiff in this case. The purpose of the mandated statutory notice period for summary judgments is to provide the opposing party adequate opportunity to prepare opposition to the motion, which in this case was filed and set for hearing on the eve of trial after four years and eight months of litigation.

The purpose of the mandated notice and service period under the summary judgment statute was discussed by the Court of Appeal in *McMahon*: "Because it is potentially case dispositive and usually requires considerable time and effort to prepare, a summary judgment motion is perhaps the most important pretrial motion in a civil case. Therefore, the Legislature was entitled to conclude that parties should be afforded a minimum notice period for the hearing of summary judgment motions so that they have sufficient time to assemble the relevant evidence and prepare an adequate opposition." (*McMahon*, supra, 106 Cal.App.4th at 117-18.) Notably, the Legislature amended the summary judgment statute in 2024 and extended the 75-day notice period to 81 days, without making other changes to the statute to allow the Court to shorten the notice and service period mandated by the statute, in the face of a body of case law holding the statutory notice period is the required minimum and is mandated.

Responding to a summary judgment motion set and served without the full statutory notice period would divert litigation resources to defend the motion as Plaintiff prepares to prosecute the case at trial. The record is clear that Plaintiff relied on the line of case law construing the summary judgment statute as mandating as a minimum that Plaintiff be provided the statutory notice period, and Plaintiff did not file a substantive opposition to the motion on the merits. (*Compare to Carlton*, supra, 77 Cal.App.4th at 697.) To accept American Honda's argument would be to convert the mandatory statutory minimum notice period for a summary judgment motion into a suggestion, converting what the Courts have construed as a statutory mandate requiring strict compliance given the nature of the relief sought to one in which "substantial" compliance is sufficient. Such a position is inconsistent with the language of the statute, the purposes of the notice period, and the case law binding on the Court addressed above.

Further, American Honda's position that the opposing party is required to show prejudice as a result of the moving party's noncompliance with the statutorily mandated notice and service requirements of Code of Civil Procedure section 437c is contrary to the case law. The opposing party does not have

to show prejudice for the Court to find the notice defective; the notice is invalid unless the opposing party expressly consents to a shorter notice period. (*Robinson v. Woods* (2008) 168 Cal.App.4th 1258, 1267 [expressly holding the opposing party does "*not have to claim or show prejudice* because they *did not address the merits.*" (italics in original)].)

C. Defendant's Cases Are Distinguishable

American Honda has not cited any case which has held that Code of Civil Procedure section 475 can override the specific statutory notice and service deadlines of Code of Civil Procedure section 437c. Defendant's reply cites cases in the context of other substantive motions, not summary judgment motions, such as a noticed motion for an attachment and a noticed motion for sanctions, which found no prejudice in the trial court ruling on the motion though there was noncompliance with the notice period specified. (See, e.g., *Loeb & Loeb v. Beverly Glen Music* (1985) 166 Cal. App. 3d 1110, 1115-1116 [deficient notice for June 1 hearing; trial court set a noticed hearing on the opposing party's motion to vacate the June 1 attachment order for June 18 and then a merits hearing on the attachment on July 3, at which the Court noted the opposing party was able to present a full opposition to the attachment on the merits and the party seeking the attachment remained the party with the burden of proving the grounds giving it a right to attach under the statute, so there was no prejudice to the opposing party]; *In re Marriage of Falcone and Fyke* (2008) 164 Cal.App.4th 814-828-829 [appealing award of order on third sanctions motion against appellant under Family Code 271 where notice was one day short under Code of Civil Procedure section 1005, but appellant "filed points and authorities with supporting exhibits and a declaration, addressing not only the adequacy of the notice but also raising issues concerning whether counsel's declaration had been signed under penalty of perjury, clarifying the substance of her new trial motion and arguing its merits, defending the objections counsel had cited as frivolous, attacking counsel's credibility, and attacking the merits of the sanctions motion itself," such that the Court found no prejudice from the one-day short notice].)

Defendant cites three cases involving summary judgment motions, each of which are distinguishable, and none of which make compliance with the mandatory statutory notice period of Code of Civil Procedure section 437c optional by requiring the opposing party to prove prejudice. In *Lackner v. North* (2006) 135 Cal. App. 4th 1188, North's motion for summary adjudication was dated August 8, 2003 and the hearing was originally set for September 19, 2003, but on August 18, 2003, Plaintiff Lackner moved to continue the hearing on the motion, which was granted in part, and the motion was rescheduled to October 31, 2003, 84 days after the motion was filed. (*Id.* at 1208-1209.) The Court concluded that "the notice requirement is measured from the date notice is served to the date of the actual hearing, and not the originally scheduled hearing." (*Id.* at 1209.) The Court concluded the purposes of the 75-day notice period were served under the circumstances based on the plaintiff's successful request for continuance of the hearing and the actual hearing date on the motion more than 75 days after service of the motion. (*Id.* at 1208-1209.) Further, in that case unlike this, the plaintiff "fully responded to North's motion for summary adjudication of her punitive damages claim." (*Id.* at 1209.) For these reasons, the Court of Appeal rejected her claim of error on the timing of the summary adjudication hearing.

In *National Grange of Order of Patrons of Husbandry v. California Guild* (2017) 17 Cal. App. 5th 1130, the plaintiff made a motion for summary judgment on an amended pleading which had not been

allowed and filed at the time the summary judgment motion was served, though the motion for leave to amend had been filed. The opposing party argued that the motion was defective because the amended pleading on which the motion was a "supporting paper" that had to be served with the summary judgment motion. The Court held that on appeal, under Code of Civil Procedure section 475 and Article VI, Section 13 of the California Constitution, the appellant failed to show prejudicial error so as to warrant reversal of the trial court's judgment because the summary judgment proceeding had been improper based on the later filing and service of the amended complaint. (*Id.* at 1147-1148.) The opposing/appealing party failed to identify any material difference between the prior complaint and the amended complaint on which the summary judgment motion was based. (*Id.*)

Among the circumstances the Court considered in that case were that the actual timing of the hearing on the merits of summary judgment motion was more than three months after the original hearing date, and that the trial court was willing to allow the opposing party to file supplemental briefing, which it failed to take advantage of. (*Id.* at 1147.) After a long analysis of the procedural and factual circumstances in that case, the Court summarized its ruling as follows: "So, to summarize: Under the circumstances of this case, defendants have not shown any prejudice from the fact that the trial court allowed the National Grange to seek summary judgment on an amended complaint that was not yet operative when the summary judgment motion was filed or from the fact that the version of the complaint on which the National Grange sought summary judgment was not served with the moving papers. On this record, the only reasonable conclusion is that defendants had a full and fair opportunity to dispute the material allegations leveled by the National Grange in its complaint for declaratory relief. Thus, no prejudicial error has been shown." (*Id.* at 1144-1148.)

In *Yanez v. Vasquez* (2021) 65 Cal. App. 5th Supp. 1, the summary judgment motion was served by the defendant by overnight mail one day short of the required notice, taking into account the two court days added for overnight mail service. The Court held that the plaintiff waived the notice defect in two ways; first, by raising inadequate notice but filing a merits opposition and attending the hearing on the motion without anything in the record showing he requested a continuance of the hearing, and second, by the lack of a record of the trial court ruling on the notice issue, such as a minute order addressing the issue, and the lack of a record of the oral proceedings, such that the "failure to obtain a ruling is an independent waiver of the appellate claim. [Citations omitted.]" (*Id.* at 8-11.) These circumstances are distinguishable from those before the Court in this case.

Conclusion and Ruling

Under the circumstances of this case, there can be no question that Plaintiff did not waive the procedural defect of lack of the statutory notice. Plaintiff has not filed a substantive opposition to the motion on the merits. The notice and service provisions of Code of Civil Procedure section 437c and the directly applicable case law cited in Section A above unequivocally make American Honda's motion procedurally defective and late-served, warranting denial on that basis.

The Court rejects American Honda's argument that under the circumstances of this case, the Court must ignore the defective notice because Plaintiff was obligated to prove prejudice. (*Robinson, supra*, 168 Cal.App.4th at 1267.) American Honda's four-month delay after trial was set before filing and serving the motion based on the available hearing date outside the 30-day before trial deadline is clearly prejudicial in any event in this case. The five-year deadline to bring the case to trial is looming.

The Court set a firm trial date eight months after the January 15, 2026 trial setting conference at which American Honda participated. American Honda showed neither diligence nor good cause for moving the summary judgment hearing within 30-days of trial, as the Court previously found, a finding that was well-supported and affirmed on American Honda's writ petition. Plaintiff has no obligation under the circumstances either to file a merits opposition despite the clearly, undisputedly deficient statutory notice, or to accede to a continuance of the hearing or a continuance of the trial and extension of the five-year deadline to accommodate American Honda's untimely motion.

For these reasons, the motion is **denied**.

18. 9:00 AM CASE NUMBER: MSC21-02445

CASE NAME: NIST VS FARRELL

***HEARING ON MOTION IN RE: TERMINATING SANCTIONS AGAINST DEFENDANT SHANNA M. FARRELL**

FILED BY: NIST, WILLIAM G

TENTATIVE RULING:

Summary

This tentative ruling is for Lines 18 and 23. Plaintiffs William and Mari Nist ("Plaintiffs" or "Nists") have filed two discovery motions against Defendant / Cross-Complainant Shanna M. Farrell ("Farrell"). Line 18 seeks terminating sanctions. Line 23 seeks an order compelling Farrell to attend a deposition.

The Court **grants** the Motion for Terminating Sanctions and **grants** the Motion to Compel Deposition of Farrell as set forth herein.

Background

This action arises from an easement dispute between Plaintiffs and Farrell. Plaintiffs served discovery requests seeking information regarding the parties' easement dispute, Farrell's defenses, alleged misconduct, and damages. Farrell responded with boilerplate objections and evasive answers, forcing Plaintiffs to file a motion to compel. On April 30, 2025, the Court granted Plaintiffs' motion to compel in substantial part, ordering Farrell to provide code-compliant verified responses within fifteen days and imposing monetary sanctions of \$4,703.77 against Farrell for misusing the discovery process without substantial justification.

Farrell failed to comply with the Court's order. She did not pay the monetary sanctions, necessitating enforcement proceedings. On March 12, 2026, the Court ordered Farrell to appear personally on June 16, 2026, for a debtor's examination to provide information to enforce the money judgment. Although Farrell appeared for the examination, she was unresponsive and failed to provide meaningful information. The Court thereafter ordered Farrell in contempt. Farrell was appointed counsel from the Court's conflict panel and was arraigned for her contempt proceedings. A pre-trial conference on the contempt matter is scheduled for November 6, 2026. Trial for this matter is scheduled for September 14, 2026.

Farrell's discovery abuse extends to her repeated failure to appear for properly noticed depositions. Plaintiffs first noticed Farrell's deposition for February 6, 2025. After defense counsel raised